

23CHCV00886 23CHCV00886

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-02

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MOTION FOR RELIEF

FROM POTENTIAL WAIVER OF TRIAL BY JURY

Motion filed on April 9, 2026.

MOVING PARTY: Plaintiffs Raul Gutierrez and Maria Angelica
Gutierrez

RESPONDING PARTY: None

NOTICE: OK.

RELIEF REQUESTED: Relief from any potential waiver of trial
by jury.

RULING: Granted.

BACKGROUND

On April 9, 2026, Plaintiffs filed the instant motion for
relief from any potential waiver of trial by jury. No timely opposition has
been filed.

DISCUSSION

Code of Civil Procedure section 631, subdivision (g) provides that “[t]he court may, in its discretion upon just terms, allow a trial by jury although there may have been a waiver of a trial by jury.” (Code Civ. Proc., § 631, subd. (g).) “[G]iven the public policy favoring trial by jury, the trial court should grant a motion to be relieved of a jury waiver unless, and except, where granting such a motion would work serious hardship to the objecting party.” (Gann v. Williams Brothers Realty, Inc. (1991) 231 Cal.App.3d 1698, 1703-1704.) “[T]he primary consideration is indeed whether granting relief from waiver would result in any hardship to other parties or to the court, such as delay in rescheduling the trial for a jury or inconvenience to witnesses.” (TriCoast Builders, Inc. v. Fonnegra (2024) 15 Cal.5th 766, 780.)

Here, Plaintiffs seek relief from any potential jury waiver based on their failure to timely post jury fees. Plaintiffs requested a jury trial in their February 5, 2024 Case Management Statement. Defendants also requested a jury trial in their February 2, 2024 Case Management Statement. At the February 21, 2024 case management conference, the Court (Dept. F43) set the matter for jury trial on March 17, 2025. Plaintiffs’ counsel states that the failure to pay the jury fees was inadvertent, that counsel discovered the omission during a review of the Court’s register of actions at the end of March 2026, and that Plaintiffs posted jury fees and served notice on April 9, 2026. (Eiden Decl., ¶¶ 5-6.) The motion is unopposed. Trial is currently set for August 31, 2026. The Court finds granting relief will not otherwise require a continuance, inconvenience witnesses, prejudice any party, or impose any hardship on the Court.

CONCLUSION

Plaintiffs’ motion for relief from potential waiver of trial by jury is GRANTED.